कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.
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Date: 18 .01.2021

To,

All Addl. Central P. F. Commissioners (Zones)
All Regional P. F. Commissioners (Regional Offices)

Subject: Conduct of service matter cases - regarding

Sir,

The following instructions are issued for better coordination and effective monitoring of service matter cases before Supreme Court, High Courts and benches of Central Administrative Tribunal.

1. Cases where the Union of India, Central Board of Trustees or any functionary acting on their behalf are necessary parties (i.e either their orders have been challenged or relief is sought from them), shall be directly conducted by the legal division, Head office with assistance of jurisdictional Regional and Zonal Offices and in consultation with HRM/ Vigilance Divisions wherever necessary.

2. Cases where Chairman CBT /Secretary (L&E) / CPFC and other superior authorities are respondents but neither any of their orders have been challenged nor any relief is sought from them (i.e. they are proper parties), shall be defended by jurisdictional Regional and Zonal Offices. Any guidance or clarification on policy issues in such cases may be sought from the HRM division, Head Office directly.

3. Cases where Zonal ACC /RPFC-I/ OIC or any other officer thereof are arrayed as parties shall be defended by concerned offices.

4. Cases where any policy matter or significant question of law is involved, shall be conducted by the concerned office in consultation with Legal Division, Head Office.

5. All service matter cases before Supreme Court, irrespective of whether Union of India, CBT or CPFC are necessary parties or otherwise, shall be conducted by legal division, Head Office.

6. It is reiterated that Zonal Offices shall conduct review of pending cases every month and shall ensure that cases are promptly dealt with at all stages.

7. For effective utilization of IT to improve efficiency, a web-based solution, Legal Information Management & Briefing System (LIMBS) was implemented for pro-active monitoring of court cases. The details of Court cases must be correctly & appropriately entered into the LIMBS portal. It must also be ensured that information in LIMBS portal is regularly and correctly updated.

(This issues with the approval of Central P.F. Commissioner)

Yours faithfully,

(Jag Mohan)
Addl. CPFC (HQ)(Legal)

Copy to : (a) ACC(HQ)(HRM) for kind information and necessary action.
(b) ACC, ASD, Head Office for kind information and necessary action.